Reserved on 28.09.2026
Delivered on 14.10.2026

HIGH COURT OF UTTARAKHAND AT NAINITAL

Reference No. 01 of 2026

In the Matter of Capital Punishment
Awarded to Sanjay Singh --Appellant

Versus

State of Uttarakhand

--Respondent

Presence:-
Mr. Arvind Vashistha, *Amicus Curiae* assisted by Mr. Prateek Tripathi and Mr. Priyanshu Gairola, Advocates.

Mr. J.S. Virk, Additional Advocate General assisted by Mr. Sunil Upadhyaya, Brief Holder for the State.

With

Criminal Appeal No. 224 of 2026

Sanjay Singh --Appellant

Versus

State of Uttarakhand

--Respondent

Presence:-
Ms. Neelima Mishra Joshi, *Amicus Curiae* for the appellant.

Mr. J.S. Virk, Additional Advocate General assisted by Mr. Sunil Upadhyaya, Brief Holder for the State.

Coram: Hon'ble Ravindra Maithani, J.
Hon'ble Siddhartha Sah, J.

Hon'ble Ravindra Maithani, J.

In Sessions Trial No. 02 of 2015, State v. Sanjay Singh ("the sessions trial"), by the impugned judgment and order dated 21.02.2026/24.02.2026, passed by Additional Sessions Judge, Tehri Garhwal, the appellant Sanjay has been convicted under Sections 302, 316 and 201 IPC and sentenced as under:-

(i) Under Section 302 IPC – Death sentence with a fine of Rs. 10,000/- and in default of payment of fine, to undergo further imprisonment for a period of six months.

(ii) Under Section 316 IPC – Rigorous imprisonment for a period of three years with a fine of Rs. 5,000/- and in default of payment of fine, to undergo further imprisonment for a period of six months.

(iii) Under Section 201 IPC – Rigorous imprisonment for a period of two years with a fine of Rs. 5,000/- and in default of payment, to undergo further imprisonment for a period of six months.

2. Criminal Reference No. 01 of 2026 has been instituted under Section 366 of the Code of Criminal Procedure, 1973 ("the Code") for confirmation of death sentence as awarded to the appellant Sanjay Singh.

3. Criminal Appeal No. 224 of 2026 has been preferred by the appellant Sanjay Singh against his conviction and sentence, as stated hereinabove.

4. Facts necessary to appreciate the controversy, briefly stated are as follows. One Ram Singh Panwar of village Gumalgaon lodged a report on 13.12.2024 to the concerned Revenue Officer that his son/appellant Sanjay Singh has killed his real brother Surendra Singh, his mother Smt. Meena Devi and his sister-in-law

Smt. Kanta Devi by a sword. This report is Ex. A2. Based on it, at Revenue Police Circle Kwili, Tehsil Gaja, Block Narendra Nagar, District Tehri Garhwal, chik FIR, Ex. A6 was lodged and case registered.

5. For the purposes of the instant matter, the facts need not be gone into details. Sufficient to state that after investigation, charge sheet, Ex. A 33, was submitted against the appellant under Sections 302, 316, 201 IPC, which is the basis of the sessions trial. Initially, on 02.05.2015, charges were framed against the appellant under Sections 302, 316 and 201 IPC, to which he denied and claimed trial.

6. In order to prove its case, the prosecution initially examined 16 witnesses, namely, PW 1 Lal Singh, PW 2 Gyan Singh, PW 3 Hans Lal, PW 4 Manik Singh, PW 5 Rajendra Singh, PW 6 Bhagwan Singh Panwar, PW 7 Smt. Shashi Devi, PW 8 Gulab Singh, PW 9 Ramesh Nautiyal, PW 10 Jai Singh Chauhan, PW 11 Dr. Anil Kumar Singh, PW 12 Gambhir Singh, PW 13 Dr. Vinay Sharma, PW 14 Dr. Mahesh Kumar Khetan, PW 15 Dr. Ravi Gupta and PW 16 Dr. Sudhir Chandra Godiyal.

7. The appellant was examined under Section 313 of the Code of Criminal Procedure, 1973 (“the Code”). He denied the prosecution case. According to him, the investigation was wrong.

8. After hearing the parties, once by the judgment and order dated 21.08.2021/24.08.2021, the appellant was convicted under Sections 302, 316 & 201 IPC and sentenced as follows:-

(i) Under Section 302 IPC – Death sentence with a fine of Rs. 5,000/- and in default of payment of fine, to undergo further imprisonment for a period of six months.

(ii) Under Section 316 IPC – Rigorous imprisonment for a period of three years with a fine of Rs. 2,000/- and in default of payment of fine, to undergo further imprisonment for a period of six months.

(iii) Under Section 201 IPC – Rigorous imprisonment for a period of two years with a fine of Rs. 2,000/- and in default of payment, to undergo further imprisonment for a period of six months.

9. Against this judgment and order dated 21.08.2021/24.08.2021, the appellant preferred Criminal Appeal No. 441 of 2021, Sanjay Singh v. State of Uttarakhand ("first appeal"), and for confirmation of death penalty, Reference No. 02 of 2021, in the matter of Capital Punishment awarded to Sanjay Singh v. State of Uttarakhand ("first reference") was registered, which were decided on 10.05.2022.

10. In the first reference and the first appeal, the issue with regard to compliance of Section 329 of the Code and Section 105 of the Mental Healthcare Act, 2017 ("the 2017 Act") was raised and it was argued that in the instant case, despite there being record available with regard to mental illness, the Trial Court has not followed the procedure under Section 329 of the Code. In para

11 of the judgment dated 10.05.2022, the Court observed as follows:-

> "11. In this case, apparently the learned Additional Sessions Judge neither has followed the provisions of Section 329 of the Code, nor made any resort to Section 105 of the Mental Healthcare Act. This aspect is not disputed by any of the learned counsel appearing in this case."

11. This Court in its judgment dated 10.05.2022 passed in the first reference and the first appeal, referred to various documents with regard to mental illness of the appellant and observed that since the appellant was suffering from mental illness at the time of trial and the steps under Section 329 of the Code and Section 105 of the 2017 Act were not made applicable, the trial vitiates. In para 17, the Court observed as follows:-

> "17. Thus, it is apparent from the record that there is enough material on record to be satisfied, *prima facie,* that the appellant was suffering from mental illness at the time of trial. In that fact situation, the operation of Section 329 of the Code as well as Section 105 of the Mental Healthcare Act come into play. In such a situation, the Court should have followed the procedure laid down under Section 329 of the Code read with Section 105 of the Mental Healthcare Act. As the learned Trial Judge has not followed the procedure prescribed, the entire trial is vitiated, and hence, the appeal has to be allowed."

12. Accordingly, the first appeal was allowed and the matter was remanded. In paras 19 and 20, the Hon'ble Court observed as follows:-

> "19. In that view of the matter, we are of the opinion that the matter should be reconsidered by the learned trial judge from the stage when it was first brought to her notice that the appellant is suffering from mental illness.
>
> 20. In the result, the appeal is allowed. The judgment of conviction and death sentence are hereby set aside. The death reference is answered accordingly. The matter is remanded back to the court of learned Additional Sessions Judge, Tehri Garhwal to re-hear the matter by following the observations made by us in

the preceding paragraphs of this judgment."

13. After the sessions trial was received from remand, on 22.06.2022, the trial court observed that the appellant is required to be examined by Psychiatrist or Psychologist. Accordingly, the court made a communication to the Chief Medical Superintendent, State Mental Health Institute, Selaqui, Dehradun ("the Institute"). Reports were received that the appellant is a patient of "Psychosis NOS" and not fit for trial. The Medical Board also opined that it could not be said as to what was the mental condition of the appellant on 13.12.2014, on which date the offence was committed. This was mentioned in court's order dated 15.11.2022 and further report was sought. Another report dated 21.11.2022 was received from the Institute, which records as under:-

> "Sh. Sanjay Singh S/o- Sh. Ram Singh is presently admitted in State Mental Health Institute, Selaqui Dehradun from 23-07-2022. He was referred to department of Clinical Psychology, NIEPVD Rajpur road Dehradun (NIVH) for Psychological assessment (reports attached). He was examined by the board at State Mental Health Institute, Selaqui Dehradun on dt. 26-09-2022 for his current mental status which has been opined as follows-
>
> 1- Based on available history and detailed evaluation Sh. Sanjay Singh S/o Sh. Ram Singh has been provisionally diagnosed as a case of Psychosis NOS.
> 2- Patient is not fit for trial because of his ongoing illness. He is not having Capacity. *Rogi vartman me chal rahi paristhitiyon, ghatnakram evam unke sambhawit parinaamon ko thik se samajhne me asmarth hai.*
> 3- His mental status on date 13/12/2014 cannot be commented upon, only present mental status can be commented upon.
> 4- Patient can be referred to higher centre for second opinion for confirmatory diagnosis. (AIIMS Rishikesh, AIIMS Delhi, IHBAS)"

14. This finds mention in the court's order dated

29.11.2022. Thereafter, another report dated 13.12.2022 of the Institute was received (Ex. A-40), which records the conditions of the appellant as below:-

> "Shri Sanjay Singh S/o Shri Ram Singh has been admitted in State Mental Health Institute, Selaqui Dehradun on 23-07-2022 and examined by the board at SMHI, Selaqui Dehradun on 12.12.2022 for her (sic his) current mental status for has opined as follows:-
>
> Based on available history, examination and detailed evaluation done by clinical Psychologist (Reports attached) Shri Sanjay Singh has been provisionally diagnosed as a case of Psychosis NOS (Psychosis Not otherwise Specified).
>
> Patient is fit for trial.
>
> His Mental Status on date 13-12-2014 cannot be commented upon, only present Mental Status can be commented upon.
>
> Patient can be referred to higher centre for second opinion for confirmatory diagnosis (AIIMS Rishikesh, AIIMS Delhi, IHBAS)."

15. The court took note of this report dated 13.12.2022 in its order dated 01.02.2023. Finally, taking note of all these developments, the trial court on 23.02.2022 observed that since report is received that the appellant is fit for trial, the trial shall proceed. Thereafter, the sequence of events is as follows:-

(i) 03.04.2023 - Charges under Sections 302, 316, 201 IPC were framed against the appellant, to which he denied and claimed trial.

(ii) 24.05.2023 - On behalf of the District Government Counsel (Criminal), it was informed to the court that the witnesses who have been examined earlier, their examination-in-chief may be read into evidence. This was noted and witnesses were called for cross-examination. On

that date, PW 1 Lal Singh and PW 3 Hans Lal were cross-examined.

(iii) 02.04.2024 - Prosecution evidence was closed and the matter was listed for examination of the appellant under Section 313 of the Code.

(iv) 25.04.2024 - The court observed that the appellant is not answering to any question under Section 313 of the Code, therefore, he may be examined by All India Institute of Medical Sciences, Rishikesh ("AIIMS, Rishikesh").

(v) 24.05.2024 - The Medical Board of AIIMS, Rishikesh gave a report that a Board has been constituted and the appellant requires admission and treatment at AIIMS, Rishikesh.

(vi) 25.05.2024 - The court took note of the report of the Medical Board of AIIMS, Rishikesh dated 24.05.2024.

(vii) 07.06.2024- The Medical Board of AIIMS, Rishikesh gave its report dated 07.06.2024. It records as follows:-

> "(i) The patient is suffering from Schizophrenia – currently in partial remission. After starting Tablet Risperidone 8 mg/d in divided doses.
>
> (ii) The patient requires continued treatment and regular follow-ups.
>
> (iii) At present, the patient appears fit to stand trial."

(viii) 10.07.2024- The court took note of the

report dated 07.06.2024 of AIIMS, Rishikesh, but did not pass any order on it. The court simply made a mention of it and recorded that the appellant is not answering to any question asked under Section 313 of the Code.

(ix) 29.07.2024- The appellant was questioned under Section 313 of the Code, but he did not give any answer.

(x) 24.10.2024- Again the appellant was questioned under Section 313 of the Code, but he did not give any answer.

(xi) 11.12.2024- Again on this date, the appellant was questioned under Section 313 of the Code, but he did not answer any question. The court made an inference that it seems the appellant has nothing to say and got the signature of the appellant on the statement under Section 313 of the Code and thereafter by the impugned judgment, convicted and sentenced the appellant, which gives rise to the appeal as well as to the reference.

16. Learned *Amicus Curiae* submits that a Coordinate Bench of this Court in its judgment dated 10.05.2022 passed in the first reference and the first appeal had taken note of various certificates of the appellants, namely, Exs. A 34, A 36, A 38, A 39 in paragraphs 13, 14 & 15 and concluded in paragraph 17 of the judgment that since the procedures under Section 329 of the Code and 105 of the 2017 Act have not been followed, the entire trial is

vitiated and, therefore, directed the court below to reconsider the matter from the stage when it was first brought to the notice that the appellant is suffering from mental illness. It is argued that thereafter though the trial court had framed charges on 03.04.2023 afresh, but did not follow the due procedure. It is argued that whatever evidence was recorded earlier, that has been vitiated due to non-compliance of Section 329 of the Code and Section 105 of the 2017 Act. Moreover, it is argued that a witness is to be examined in the presence of an accused under Section 273 of the Code, but if the appellant was mentally unwell, his physical presence makes no difference and it will be presumed that, in fact, the evidence that was recorded earlier was not recorded in the presence of the appellant.

17. It is argued that on 24.05.2023, the court noted on the endorsement of the prosecution that the witnesses, that were examined earlier, their examination-in-chief may be read into evidence. It is argued that this examination-in-chief of the witnesses recorded earlier has already been vitiated by the judgment dated 10.05.2022 passed by this Court in the first appeal and the reference, and the court below committed an error in treating that evidence as examination-in-chief. It is argued that, in fact, it is no evidence against the appellant, except evidence of PW 17 Dr. Ravindra Navani, who was examined afresh and the prosecution, accordingly, has utterly failed to prove the charges against the appellant; he deserves to be acquitted. It is argued that there are still reports that the appellant is mentally ill, this Court needs to pass an order under Sections 334, 335 of the Code and under Section 103 of the 2017 Act so that the appellant may be

sent in a facility for his treatment.

18. In addition to it, it is argued that, in fact, in the instant case, even after remand of the case by order dated 10.05.2022 passed in the first appeal and the first reference, the compliance under Section 329 of the Code has not been made. The appellant did not reply to any question under Section 313 of the Code. He was suffering with Schizophrenia. The trial ought to have been suspended. It is argued that for this reason also, the trial has been vitiated and the appellant now deserves to be acquitted of the charges levelled against him.

19. Learned Senior Counsel Mr. Arvind Vashistha further argued that the record, which is available proves in abundance that, in fact, the appellant was mentally ill on the date of incident itself, because soon after the incident on 14.12.2014, when he was produced before the Magistrate, before that he was examined by the doctor, who opined that the appellant was suffering with mental illness. It is argued that the record shows that at the time of incident, the appellant was unaware of the act committed by him and its consequences, therefore also, he deserves acquittal.

20. In support of his contention, learned Senior Counsel has placed reliance on the principle of law as laid down in the case of Accused 'X' v. State of Maharashtra, (2019) 7 SCC 1, wherein in paras 70 and 71, the Hon'ble Supreme Court observed as follows:-

> **"70.** In line with the above discussion, we note that there appear to be no set disorders/disabilities for evaluating the "severe mental illness", however a "test of severity" can be a guiding factor for recognising those mental illness which qualify for an exemption. Therefore, the test envisaged herein predicates that

> the offender needs to have a severe mental illness or disability, which simply means that a medical professional would objectively consider the illness to be most serious so that he cannot understand or comprehend the nature and purpose behind the imposition of such punishment. These disorders generally include schizophrenia, other serious psychotic disorders and dissociative disorders with schizophrenia.
>
> **71.** The following directions need to be followed in the future cases in light of the above discussion:
>
> **71.1.** That the post-conviction severe mental illness will be a mitigating factor that the appellate court, in appropriate cases, needs to consider while sentencing an accused to death penalty.
>
> **71.2.** The assessment of such disability should be conducted by a multi-disciplinary team of qualified professionals (experienced medical practitioners, criminologists, etc.), including professional with expertise in accused's particular mental illness.
>
> **71.3.** The burden is on the accused to prove by a preponderance of clear evidence that he is suffering with severe mental illness. The accused has to demonstrate active, residual or prodromal symptoms, that the severe mental disability was manifesting.
>
> **71.4.** The State may offer evidence to rebut such claim.
>
> **71.5.** Court in appropriate cases could set up a panel to submit an expert report.
>
> **71.6.** "Test of severity" envisaged herein predicates that the offender needs to have a severe mental illness or disability, which simply means that objectively the illness needs to be most serious that the accused cannot understand or comprehend the nature and purpose behind the imposition of such punishment."

21. Learned Senior Counsel also submits that now the case need not be remanded. The appellant is already in custody for more than 11 years. He is entitled to benefit of Section 84 of IPC. Hence, it is a case of acquittal.

22. Ms. Neelima Mishra Joshi, learned counsel for the appellant Sanjay submits that the appellant was suffering with mental illness and the trial court has not considered this aspect and even the statement of the complainant has not been recorded.

23. Learned Senior Counsel Mr. J.S. Virk appearing for the

State submits that, in fact, from day one the appellant was suffering with mental illness. He would submit that subsequently on 20.03.2023, after remand of the case, the court has recorded that the appellant is able to defend himself and he is fit for trial, which means that compliance of Section 329 of the Code has been made. Learned Senior Counsel also raised the following points in his submission:-

(i) On 24.05.2023, on behalf of the prosecution, it was stated that the examination-in-chief of the witnesses recorded earlier may be treated as examination-in-chief and accordingly, the witnesses were further cross-examined by the appellant. It is argued that at that stage, the appellant did not raise any objection, hence, the examination is valid.

(ii) If the appellant was not answering to questions under Section 313 of the Code, the court below ought to have further examined the appellant by a mental health care professional or by a doctor. It was not done, which is against the spirit of Section 329 of the Code and for this reason, the matter may be remanded.

(iii) On the issue of application of Section 84 IPC, it is argued that from day one, the appellant was mentally ill, but he only harmed his family members and concealed his presence. Therefore, it is argued that the appellant was aware of his acts.

24. First and foremost, this Court will examine as to whether the compliance of Section 329 of the Code has been made or not?

25. In its judgment dated 10.05.2022, the Coordinate Bench of this Court, in the first reference and the first appeal, has observed in para 11 that the trial court has not followed the provisions of Section 329 of the Code and Section 105 of the 2017 Act. This statement is not completely correct. In fact, the complete fact was not brought before the Court when the first reference and the first appeal were decided. It will be a little detailed but necessary to reproduce as to what had happened in this matter.

26. The following dates would be necessary to be noted:-

(i) 13.12.2024 - The date of incident.

(ii) 14.12.2024- The Investigating Officer gave an application to the Medical Officer, District Hospital, Baurari, New Tehri for medical examination of the appellant.

(iii) 14.12.2014- The appellant was examined by the Medical Officer at District Hospital, Baurari, New Tehri (Ex. A-36) and the doctor opined that "**this person is physically fit but mentally illness may be present so referred to clinical Psychologist for evaluation of his illness.**" Despite this medical report, the appellant was remanded to judicial custody on 14.12.2014.

(iv) 09.01.2015- Incharge Jailor, District Jail,

New Tehri, District Tehri Garhwal sought permission from the court that the appellant has been referred to the Institute by the Incharge Medical Officer, Jail, therefore, permission may be granted to shift the appellant to the Institute.

(v) 02.05.2015- Charges were framed against the appellant.

(vi) 02.06.2015- PW 1 Lal Singh and PW 2 Gyan Singh were examined.

(vii) 21.07.2015- Examination of PW 3 Hans Lal, PW 4 Manik Singh and PW 5 Rajendra Singh.

(viii) 31.07.2015- Letter by Incharge Jailor, District Jail, New Tehri to the court seeking permission to send the appellant to the Institute on the ground that he was to be admitted in the institute as per the medical advice.

(ix) 13.08.2015- Examination of PW 6 Bhagwan Singh Panwar.

(x) 21.08.2015- Letter of Chief Medical Superintendent of the Institute addressed to the Superintendent, District Jail, Tehri Garhwal seeking permission that the appellant is to be referred to higher institute.

(xi) 26.08.2015- The communication of Incharge Jailor, District Jail, New Tehri to the court. On this, the court did not forward the appellant to the higher institute on the ground that there is no report placed along with it.

(xii) 07.09.2015- Examination of PW 7 Smt. Shashi Devi and PW 8 Gulab Singh.

(xiii) 17.09.2015- Examination of PW 9 Ramesh Nautiyal and PW 10 Jai Singh Chauhan.

(xiv) 21.09.2015- Communication of Incharge Jailor, District Jail, New Tehri seeking permission to refer the appellant to the higher institute.

(xv) 05.11.2015- Examination of PW 11 Dr. Anil Kumar Singh.

(xvi) 13.11.2015- Communication of Incharge Jailor, District Jail, New Tehri seeking permission of the court to shift the appellant to higher institute. It records that the condition of the appellant is aggressive. All the other inmates are scared of him. He may commit any untoward incident. On it, the court directed that the Jail Superintendent may take steps in accordance with the Jail Manual.

(xvii) 20.11.2015- Examination of PW 12 Gambhir Singh.

(xviii) 22.01.2016- On this date, the court proceeded to record the statement of the appellant under Section 313 of the Code, but the appellant was not answering about his name, his father's name, the name of his village, etc. Thereafter, the medical reports of the appellant were sought from jail and from this stage, the trial deferred. It is, in fact, a step under Section

329 of the Code.

(xix) 12.02.2021- Finally, the court observed that the appellant told the court that he is fit to stand trial. The court sought report and on 31.03.2021, based on the medical report, which recorded that the appellant is fit to stand trial, the court recorded that the trial shall resume.

(xx) The above events make it abundantly clear that the trial remained suspended from 22.01.2016 till 31.03.2021. This is a fact. But, fact also remains that in this period, the appellant was mentally unwell.

27. There are a few more reports, which need mention at this stage only.

(i) 11.02.2016- The appellant was examined by the Government Medical College, Haldwani (Ex. A-39) and the doctor recorded as below:-

> "Accused Mr. Sanjay Singh (Age-30y/M, PANA No. 247495) S/o Shri Ram Singh was admitted here, on 01-02-2016 for observation, opinion & treatment. During his hospitalization, we could not observe any behaviour abnormality suggestive of any psychiatric/psychotic (unsoundness of mind) disorder, except mutism (aphonia) which is more likely to be malingering in present situation of the case.
>
> Since, we could not yet reach any diagnostic conclusion, therefore, initiation of treatment was not feasible. To reach at an appropriate diagnosis, we shall need his behavior history before his arrest from his closed relative/neighbors and thereafter, he may be appropriately managed."

(ii) 11.08.2016- The appellant was examined at

the Institute (Ex. A-34) and the doctor opined that "**Did not suggestive of clear major psychotic disorder. However, for definite opinion psychological assessment at higher centre may be done by clinical psychologist".**

(iii) 23.09.2019- The Board of AIIMS, Rishikesh examined (Ex. A-38) the appellant and observed as follows:-

(i) Mr. Sanjay Singh s/o Sh. Ram Singh has been diagnosed as a case of Schizophrenia and is improving with the given treatment.

(ii) At present he is not totally asymptomatic but a significant improvement has been observed with the treatment.

(iii) Based on present observation, at present he is able to manage his activities of daily living independently.

(iv) Patient requires long term treatment and follow ups on a regular basis."

(iv) 06.04.2021- The appellant was examined under Section 313 of the Code.

(v) 07.07.2021- After resumption of trial, on 07.07.2021, the court observed that the witnesses with regard to treatment of the mental illness of the appellant need to be examined.

(vi) 26.07.2021- PW 13 Dr. Vinay Sharma and PW 14 Dr. Mahesh Kumar Khetan were examined.

(vii) 31.07.2021- PW 15 Dr. Ravi Gupta was examined.

(viii) 02.08.2021- PW 16 Dr. Sudhir Chandra Godiyal was examined.

(ix) 04.08.2021- Additional statement of the

appellant under Section 313 of the Code was recorded.

(x) 24.08.2021- The court below convicted and sentenced the appellants under Sections 302, 316 and 201 IPC.

28. Section 329 of the Code reads as under:-

> "**329. Procedure in case of person of unsound mind tried before Court**.—(1) If at the trial of any person before a Magistrate or Court of Session, it appears to the Magistrate or Court that such person is of unsound mind and consequently incapable of making his defence, the Magistrate or Court shall, in the first instance, try the fact of such unsoundness and incapacity, and if the Magistrate or Court, after considering such medical and other evidence as may be produced before him or it, is satisfied of the fact, he or it shall record a finding to that effect and shall postpone further proceedings in the case.
>
> (1A) If during trial, the Magistrate or Court of Sessions finds the accused to be of unsound mind, he or it shall refer such person to a psychiatrist or clinical psychologist for care and treatment, and the psychiatrist or clinical psychologist, as the case may be shall report to the Magistrate or Court whether the accused is suffering from unsoundness of mind:
>
> Provided that if the accused is aggrieved by the information given by the psychiatric or clinical psychologist, as the case may be, to the Magistrate, he may prefer an appeal before the Medical Board which shall consist of—
>
> (a) head of psychiatry unit in the nearest government hospital; and
>
> (b) a faculty member in psychiatry in the nearest medical college.
>
> (2) If such Magistrate or Court is informed that the person referred to in sub-section (1A) is a person of unsound mind, the Magistrate or Court shall further determine whether unsoundness of mind renders the accused incapable of entering defence and if the accused is found so incapable, the Magistrate or Court shall record a finding to that effect and shall examine the record of evidence produced by the prosecution and after hearing

> the advocate of the accused but without questioning the accused, if the Magistrate or Court finds that no prima facie case is made out against the accused, he or it shall, instead of postponing the trial, discharge the accused and deal with him in the manner provided under section 330:
>
> Provided that if the Magistrate or Court finds that a prima facie case is made out against the accused in respect of whom a finding of unsoundness of mind is arrived at, he shall postpone the trial for such period, as in the opinion of the psychiatrist or clinical psychologist, is required for the treatment of the accused.
>
> (3) If the Magistrate or Court finds that a prima facie case is made out against the accused and he is incapable of entering defence by reason of mental retardation, he or it shall not hold the trial and order the accused to be dealt with in accordance with section 330."

29. In fact, the laudable object behind Section 329 of the Code is to help a person, who is of unsound mind. That moment, the litigation no more remains adversarial. After all, if a person is not able to understand the proceeding before him, there is no question of going ahead with the proceedings, because such an accused may not be in a position to defend himself. He may not be in a position to tell his defence counsel as to how to proceed ahead.

30. In the case of Prakash Nayi *alias* Sen v. State of Goa, (2023) 5 SCC 673, the Hon'ble Supreme Court has held as follows:-

> **"15.** Chapter XXV of the Code of Criminal Procedure, 1973 (hereinafter "CrPC"), though procedural in nature, also becomes substantive when it deals with an accused person of unsound mind. A well-laid procedure is contemplated under Sections 328 to 339CrPC. There is not even a need for an application under Section 329CrPC in finding out as to whether an accused would be sound enough to stand a trial, rather it is the mandatory duty of the court. Under Section 330, the court can even go to the extent of discharging such a person if his inability to stand trial continues with a rigid chance of improvement. As per Section 334CrPC, the judgment of the court shall include a specific

> finding that the act was committed due to unsoundness of mind, though it was actually done. The reason is simple as there cannot be an acquittal on the ground of unsoundness of mind unless the act is actually done.
>
> **16.** The whole idea under the provisions discussed is to facilitate a person of unsound mind to stand trial, not only because of his reasoning capacity, but also to treat him as the one who is having a disability. The role of the court is to find the remedial measures and do complete justice.
>
> **17.** Having noted the scope and ambit of Chapter XXV CrPC, including the provisions incorporated by way of amendments in the year 2009, one has to take into account the fact that the court has a larger role to play while considering the case under Section 84IPC. If a friendly approach is required to be followed during the trial, when adequate powers have been conferred upon the court to even discharge an accused on the ground of an unsound mind, the same reasoning will have to be applied with much force when it comes to Section 84IPC."

31. The appellant, in the instant case, was found by the doctors suffering with mental illness on 14.12.2014 before he was produced before the Magistrate. This was the first stage. Thereafter, there had been multiple communications during trial with regard to the mental health condition of the appellant. Particularly, Exs. A 34, A 36, A 38 and A 39, which have been referred to hereinbefore, make it abundantly clear that the appellant was suffering with Schizophrenia. But, his trial continued and statements of PW 1 to PW 12 were recorded during that period. That trial was held vitiated by this Court by its judgment dated 10.05.2022 passed in the first reference and the first appeal.

32. Subsequently, when the trial resumed after remand of the case, on 24.05.2023, the examination-in-chief recorded between 02.06.2015 to 19.01.2016 were also considered for examination-in-chief. Section 273 of the Code is also important. It

records that the evidence is to be taken in presence of the accused. It reads as follows:-

> "**273. Evidence to be taken in presence of accused.**— Except as otherwise expressly provided, all evidence taken in the course of the trial or other proceeding shall be taken in the presence of the accused, or, when his personal attendance is dispensed with, in the presence of his pleader:
>
> Provided that where the evidence of a woman below the age of eighteen years who is alleged to have been subjected to rape or any other sexual offence, is to be recorded, the court may take appropriate measures to ensure that such woman is not confronted by the accused while at the same time ensuring the right of cross-examination of the accused.
>
> Explanation.—In this section, "accused" includes a person in relation to whom any proceeding under Chapter VIII has been commenced under this Code."

33. Above provision has a reason. An accused needs to know as to what is being spoken against him and by whom, so that he may put his defence. From 02.05.2015 to 19.01.2016, the appellant was mentally unwell. There are multiple reports during that period, as has been stated hereinbefore. But, the examination-in-chief recorded during that period of PW 1 to PW 12 was further taken into consideration.

34. When the appellant was mentally unwell, at the initial stage, the proceedings ought to have been suspended under Section 329 of the Code, which was not done and the trial proceeded from 02.06.2015 onwards. It is non-compliance of Section 329 of the Code.

35. After judgment of this Court passed in the first reference and the first appeal, on 10.05.2022, the court sought a report about the mental condition of the appellant and on

01.02.2023, relying on the report dated 13.12.2022 of the Institute, which is Ex. A-40, proved by PW 17 Dr. Ravindra Navani, proceeded with the trial. This report has already been quoted hereinabove (at para 14 of the judgment). It records that the appellant has been provisionally diagnosed as a case of Psychosis NOS and further that the patient can be referred to higher centre for second opinion for confirmatory diagnosis (AIIMS Rishikesh, AIIMS Delhi, IHBAS). What happened thereafter? Again on 20.03.2023, the court believed on the report dated 13.12.2022 of the Institute (Ex. A-40) and proceeded with the trial and framed charges, etc. The case remained for cross-examination from 24.05.2023 to 02.04.2024.

36. The first date for examination of the appellant under Section 313 of the Code was 12.04.2024. He did not answer any question. Therefore, as stated, on 24.04.2024, the court sought another report from AIIMS, Rishikesh. AIIMS, Rishikesh constituted a Board and informed the court that the appellant may be admitted in the hospital for treatment and subsequently a report was given by the Board on 07.06.2024. It is already quoted hereinabove (in Para 15(vii) of the judgment). This report was placed before the court on 10.07.2024, but the court did not stop the proceedings. This report categorically records that the patient is suffering with Schizophrenia- currently in partial remission. It means that the appellant was not mentally well on 07.06.2024 also. But, his trial proceeded. Thereafter, on the next date i.e. 29.07.2024, the appellant was further questioned under Section 313 of the Code, to which he did not answer. He never answered any question thereafter and as a formality, on 11.12.2024, the

court recorded that since the appellant is not answering to any question, it means that he has nothing to say, and the signatures of the appellant were obtained.

37. This is a gross non-compliance of the provisions of Section 329 of the Code. Despite having a positive report dated 07.06.2024 of AIIMS, Rishikesh that the appellant is suffering with Schizophrenia- currently in partial remission and he requires continuous treatment and regular follow-ups, the trial proceeded. It is against the provisions of Section 329 of the Code. Therefore, this Court is of the view that, in fact, in the instant case, even after remand of the matter by this Court by its judgment dated 10.05.2022, the provisions of Section 329 of the Code have not been followed.

38. The question is – should the matter be remanded?

39. It is stated that the appellant is already in custody for more than 11 years. He is a death row convict twice. Whether the case should be remanded or not depends on further analysis, which would be with regard to application of Section 84 IPC and as to whether the prosecution has been able to prove its case?

40. Since, this Court has already held that in the instant case, since inception, the provisions of Section 329 of the Code were not followed and even after remand of the matter by this Court by judgment dated 10.05.2022 passed in the first reference and the first appeal, the provisions of Section 329 of the Code have not been complied with in letter and spirit, this Court may not

delve into the evidence that has been adduced by the prosecution.

41. In its order dated 10.05.2022 passed in the first reference and the first appeal, this Court has already observed in para 17 that the entire trial has vitiated, which means the evidence recorded from 02.06.2015 to 06.04.2021 has been vitiated. But, when after remand, charges were framed on 03.04.2023, thereafter on 24.05.2023, the examination-in-chief of the witnesses recorded earlier were taken as examination-in-chief of witnesses. In fact, that trial had vitiated pursuant to the judgment dated 10.05.2022 passed by this Court in the first reference and the first appeal. Moreover, as stated, the appellant was not mentally well since inception. Whatever evidence was recorded from 02.05.2015 till 19.01.2016, the appellant was not able to understand that evidence. In fact, it was as good as that the evidence was not recorded in his presence. In other words, the evidence recorded was in defiance to Section 273 of the Code. Therefore, in fact, there has been no evidence, except the evidence of PW 17 Dr. Ravindra Navani. The examination-in-chief of PW 1 to PW 16 were taken from that evidence, which trial had vitiated. Therefore, also the prosecution, in fact, has failed to prove the case against the appellant. There has been no evidence.

42. The last question that requires answer is – as to whether the appellant is entitled to the benefit of Section 84 IPC?

43. Section 84 of IPC reads as follows:-

> "**84. Act of a person of unsound mind.**—Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of

> knowing the nature of the act, or that he is doing what is either wrong or contrary to law."

44. Section 84 of IPC gives protection to such situation when an act is done by a person who, at the time of doing it, is incapable of knowing the nature of the act by reason of unsoundness of mind.

45. In the instant case, there are multiple records to reveal that the appellant is suffering from mental illness. The first document is of 14.12.2014. It is Ex. A-36 on record. After arrest, it is the first document, when the doctor has said that the appellant is suffering with mental illness. There are repeated documents, which have been referred to hereinbefore, which reveal that the appellant is suffering with Psychosis NOS. He is Schizophrenic patient.

46. At the time of hearing arguments, this Court on 04.08.2026 required that the appellant be produced before the Director, AIIMS, Rishikesh so as to examine him. The report has now been received, which reads as under:-

> "1. The patient is suffering from Schizophrenia-currently in significantly improved condition, on daily medication.
>
> 2. The patient requires continued treatment and regular follow-ups for maintenance of improvement.
>
> 3. During his current in-patient stay, the patient was able to communicate verbally without any apparent difficulty and without requiring any support, and at present he is fit to stand trial."

47. The appellant is still suffering from Schizophrenia. He is being cured in between. In the case of Prakash Nayi (*supra*), the Hon'ble Supreme Court has discussed the concept of mental illness of Schizophrenia and held that the mere fact that an accused subsequently became fit to face trial is sufficient to render an order of acquittal as it is indicative of prior insanity. In para 27 of the judgment in the case of Prakash Nayi (*supra*), the Hon'ble Supreme Court observed as follows:

> **"27.** We may also add that this report merely records the statements of the doctors who have not been examined before the Court. Suffice it to say, that the evidence of the government doctor as DW 1 who withstood cross-examination ought to have been accepted. The mere fact that the appellant subsequently became fit to face the trial is sufficient enough to render an order of acquittal as it is indicative of his prior insanity. We do feel that both the trial court and the High Court were influenced by the nature of the act while ignoring the condition of the appellant and the fact that the burden on the accused is one of preponderance of probability. We have also been informed that the appellant has recovered fully and mixed well with the society."

48. In the instant case, it is not that long after the incident the appellant was examined. He was examined on the next date i.e. 14.12.2014. There had been reports that the appellant needs treatment for mental illness. Therefore, this Court is of the view that, in fact, at the time of committing the offence, the appellant by reason of unsound mind was incapable of knowing the nature of the act or that what he is doing is either wrong or contrary to law. Therefore, the appellant is entitled to get benefit under Section 84 of IPC and deserves acquittal.

49. This Court has already held that the prosecution has

not been able to prove its case beyond reasonable doubt. Not only this, in the instant matter, there has been no compliance of Section 329 of the Code and the appellant is entitled to benefit of Section 84 of IPC and deserves acquittal on this count as well. Now, the question is as to whether the appellant should be set free?

50. In compliance of this Court's order dated 04.08.2026, the appellant was produced before the medical board constituted by the AIIMS, Rishikesh so as to assess his mental condition, and the said medical board, on the basis of clinical examination and investigation of the appellant, vide its report dated 25.08.2026 has categorically opined that the appellant is still suffering from "**Schizophrenia**". Thus, since the appellant is suffering from Schizophrenia, which led to homicidal tendencies in him, this Court is of the opinion that it is dangerous to let him at liberty and accordingly, under the provisions of Section 335 of the Code, the appellant is liable to be detained in safe custody in State Mental Health Institute, Selaqui, Dehradun. It is needless to add that the State Government will take steps to have the appellant treated in the said Institute until he is cured of his illness. Once cured, the State Government may accommodate the appellant to such home/accommodation, as per the provisions of the Uttarakhand Mental Healthcare (Rights of Persons with Mental Illness) Rules, 2023.

51. Accordingly, the Court concludes as under:-

(i) Criminal Appeal No. 224 of 2026 is allowed.

(ii) The judgment and order dated 21.02.2026/24.02.2026 passed in Sessions Trial No. 02 of 2015, State v. Sanjay Singh is set aside.

(iii) The appellant is acquitted of the charges under Sections 302, 316 and 201 IPC.

(iv) Since the appellant is suffering from Schizophrenia, which led to homicidal tendencies in him, we are of the opinion that it is dangerous to let him at liberty and, accordingly, under the provisions of Section 335 of the Code, the appellant is directed to be detained in safe custody in State Mental Health Institute, Selaqui, Dehradun. The State Government will take steps to have the appellant treated in the said Institute until he is cured of his illness. Once cured, the State Government may accommodate the appellant to such home/accommodation, as per the provisions of the Uttarakhand Mental Healthcare (Rights of Persons with Mental Illness) Rules, 2023.

(v) The Criminal Reference No. 01 of 2026 is answered in the above terms.

52. Let a copy of this judgment, along with trial court record be sent to the court concerned.

53. Learned Senior Counsel for the State is requested to forward a copy of this judgment to the Principal Secretary, Home, Government of Uttarakhand, for compliance of the judgment at his part.

(Siddhartha Sah, J.)
14.10.2026

(Ravindra Maithani, J.)
14.10.2026

Avneet/